

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2022-4223 & 2022-6803

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE REGISTRATION TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR CANDIDATE IN THE STATE OF COLORADO AND THE APPLICATION FOR LICENSURE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ROBERT HILLYER, REGISTRATION NO. LPCC 17159, LICENSE NO. LPC (PENDING),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Robert Hillyer ("Applicant"), as follows:

1. Applicant was registered to practice as a licensed professional counselor candidate ("LPCC") in the State of Colorado on October 1, 2019, having been issued registration number LPCC 17159, and is currently so registered. Applicant's LPCC expires on October 1, 2023.

2. By application dated July 20, 2022, Applicant applied for licensure to practice as a professional counselor ("LPC") in the State of Colorado ("Application").

3. The Board has jurisdiction over Applicant, his LPCC registration, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").

4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's LPCC registration and the Application in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2022-4223 and 2022-6803. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.

5. Applicant admits the following:

a. On or about July 20, 2022, Applicant applied for licensure in the State of Colorado, and his licensure request is currently pending.

b. On his Application, Applicant answered "yes" to the questions which state: "Within the past five years, have you engaged in any conduct or exhibited any behaviors that resulted in: An impairment of your ability to practice in a safe, competent, ethical and professional manner? and Abusing or excessively using any habit forming drug, including alcohol, or any illegal or controlled substance resulting in any discipline for misconduct, failure to meet professional responsibilities, or affecting your ability to practice safely and competently?"

c. On or about October 13, 2022, Applicant underwent a mental status examination with Peer Assistance Services, Inc. ("PAS"). The evaluator concluded that Applicant is only safe to practice with reasonable skill and safety, with treatment and monitoring.

d. Applicant failed to act within the limitations created by mental health, or substance use disorder that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care.

6. By virtue of the facts admitted in paragraph 5 above, Applicant admits and the Board finds that the above conduct is a violation of section 12-245-224(1)(f)(II), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(f)(II) Fails to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

7. By virtue of the admissions contained in paragraphs 5 and 6, Applicant specifically agrees to maintain his LPCC as previously granted with the limitations outlined below, and to accept a LPC license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-245-214 and 12-245-226(3)(a), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to his registration and license within the meaning of section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-245-214 and 24-4-104(9), C.R.S.

PROBATION

8. Applicant's LPCC registration and LPC license shall be placed on probation for a minimum period of two (2) years, commencing from the effective date

of this Order. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Applicant is not practicing as a LPCC or LPC or engaged in the practice of professional counseling in the State of Colorado;
- b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 10 and 11 of this Order; and
- c. Applicant is not otherwise in full compliance with the terms of this Order.

9. If, after one (1) year of probation, Applicant has adhered to all terms and conditions of this Order, and in the event that PAS agrees, Applicant may request termination of probation, PAS, and the therapy monitoring requirement. Request for termination must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that he has satisfied the terms and conditions of probation, PAS, and therapy monitoring. It is at the Board's discretion whether or not to approve Applicant's request to terminate probation, PAS, and the therapy monitoring requirement.

PEER ASSISTANCE SERVICES ("PAS")

10. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with PAS for a minimum period of two (2) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

11. Applicant shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order ("PAS Contract"). Applicant agrees to cease the practice of professional counseling after fourteen (14) days until such time as Applicant enters into his PAS Contract.

a. Therapy monitoring. As a requirement of his PAS Contract, Applicant shall undergo individual therapy with an approved mental health provider, at a frequency and duration to be determined by PAS, as specified in the PAS Contract signed by Applicant.

b. Urine/Blood Screens. As a requirement of his PAS Contract, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall

be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

c. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS Contract signed by Applicant.

d. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Board upon its request. Applicant shall keep all releases current and in effect.

e. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

f. Withdrawal from Program. Applicant must immediately notify the Board in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

TERMS AND CONDITIONS

12. Applicant will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

13. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

14. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

15. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the

effective date of such change.

16. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

17. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

18. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

19. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

20. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

21. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

22. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

23. This Order shall be admissible as evidence at any hearing held before the Board.

24. This Order shall be a public record in the custody of the Board.

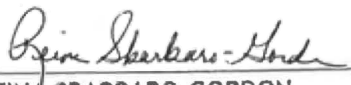
AGREED TO AND ACCEPTED BY:

APPLICANT


ROBERT HILLYER
LPCC 17159
LICENSE No. LPC (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


REINA SBARBARO-GORDON
Program Director

Effective this 18th day of May,
2023.

APPROVED AS TO FORM
FOR RESPONDENT


ROBERT A. LEES
Robert A. Lees & Associates